

SETTLEMENT AGREEMENT, RELEASE AND WAIVER

This Settlement Agreement, Release and Waiver (hereinafter "Agreement") is entered into by and between [REDACTED] ("Parents"), individually and on behalf of their son, [REDACTED] or "Student"), and the Brecksville-Broadview Heights City School District Board of Education ("District" or "Board") (collectively, "Parties"). [REDACTED] is also a party to this Agreement but only with respect to Paragraphs 10 and 15.

In consideration of and for the promises and mutual covenants contained herein, the Parties agree as follows:

1. [REDACTED] qualifies for special education and related services as a child with a disability pursuant to the Individuals with Disabilities Education Improvement Act ("IDEA") under the category of Autism. Parents and the Board disagree regarding the provision of a free appropriate education ("FAPE") to [REDACTED] for the 2019-2020 school year. The Parties reach this compromise agreement to avoid the expense, inconvenience, and potential acrimony of a due process hearing under the IDEA.
2. a. For the 2019-2020 school year, inclusive of the summer of 2020, the District will pay tuition, on behalf of Parents and [REDACTED], to the Cleveland Clinic's Lerner School for Autism ("Lerner") in an amount not to exceed eighty thousand eight hundred and forty dollars (\$80,840) related to [REDACTED]'s attendance at Lerner. Parents shall direct Lerner to provide the District's Director of Pupil Services with copies of all invoices related to said tuition. Upon receipt of quarterly invoices, the District shall pay to Lerner the specified amount within fifteen (15) business days of the date the Director of Pupil Services receives the invoice. Parents agree to assume full responsibility for any remaining tuition and costs associated with Student's education at Lerner during the 2019-2020 school year (inclusive of the summer of 2020), including transportation.

Parents agree that for any school year in which Parents and/or Student accept the District making the payments set forth above, Parents and/or Student waive their right to apply for the Autism Scholarship Program ("ASP") and/or the Jon Peterson Special Needs Scholarship ("JPSN").

By allowing the District to make payments to Lerner on their behalf pursuant to this Paragraph, Parents waive all claims they may otherwise have had against the District relating to Student's education for the 2019-2020 school year, including the summer of 2020. In consideration of the distribution of funds and waiver of all entitlement to a free appropriate public education through Brecksville-Broadview Heights City School District during the 2019-2020 school year (inclusive of the summer of 2020), Parents agree that the "stay-put" placement, as such is defined by the IDEA, shall be the placement set forth in Student's IEP dated 09/30/2019 (i.e., In Section 11, the first box will be checked "child attends the school he/she would attend if not disabled" and the second box will state "Due to [REDACTED]

*Student Education Record
Not a Public Record*

academic, communication, social, and functional needs, his instruction in language arts, mathematics, social studies and science will be provided in the resource room for students with moderate to intensive needs. [REDACTED] is able to join with his homeroom for assemblies, parties, special's classes (media center, P.E., music, art, computer lab) and special events with the assistance of a special education aide. [REDACTED] may receive his therapy services outside the classroom for initial task mastery.”).

- b. Parents shall be responsible for transporting [REDACTED] to and from Lerner for the 2019-2020 school year, including the summer of 2020. Parents shall not seek and expressly waive their ability to request reimbursement from the District for the costs associated with transporting [REDACTED] to and from Lerner.
 - c. Parents agree to assume full responsibility for federal, state, and local taxes and other payments, if any, owed on the amounts paid on their behalf pursuant to this Agreement. The District will not issue to Parents a Form 1099-MISC, and no withholdings will be made from the amounts paid by the District to Lerner pursuant to Paragraph 2(a). Parents acknowledge that the District will issue a Form 1099-MISC to Lerner for amounts paid pursuant to this Agreement. If it is later determined by the Internal Revenue Service (“IRS”) or another governmental authority that the District should have issued to Parents a Form 1099-MISC for the amounts paid by it to Lerner on behalf of Parents pursuant to this Agreement, Parents agree to indemnify and hold the District harmless for any taxes, penalties and/or interest assessed against the District related to this issue.
3. Parents affirm that they selected Lerner, and that Lerner was not determined by the IEP team to be [REDACTED] least restrictive environment (“LRE”). As such, Parents agree that the District shall not be responsible for the efficacy of the educational program provided to [REDACTED] by Lerner, and that they shall have no right to seek compensatory education or other relief from the District as a result of any real or perceived failures by Lerner. See Paragraphs 4 & 12 (Student may return to school in the District anytime and forego further payments otherwise authorized by this Agreement).
4. The Parties agree that Parents and/or Student have the right to decline the settlement amounts specified in Paragraph 2(a), and to seek to have Student educated in the District and served under the IDEA. If Parents and/or Student accept the payments referenced in Paragraph 2(a), any claims they may have otherwise had against the District for the 2019-2020 school year (inclusive of the summer of 2020), including any right to access a free appropriate public education (“FAPE”) from the District, are waived for the period covered by the payment in accordance with the terms of this Agreement.
5. Parents agree to provide releases of information allowing the District to receive all education records (including, but not limited to, all programming data, assessments, consultant’s reports, and evaluations) from Lerner and any other service provider(s) who work with and/or provide educational services to Student while he is attending Lerner.

*Student Education Record
Not a Public Record*

Parents also consent to quarterly observations of Student at Lerner by District employees or representatives. Parents shall receive forty-eight (48) hours advanced notice of these observations. The District agrees to comply with all visitation limitations imposed by Lerner. Parents also consent to District employees or representatives attending all staffing meetings held at Lerner regarding Student. The District understands that Lerner holds two to three staffing meetings each school year. To the extent they are aware of the staffing meetings, Parents will provide the District with timely notice of all upcoming staffing meetings and conferences regarding Student, and of any changes to the meeting schedule. If the District requires assistance from Parents to obtain needed educational information about Student, including staffing meeting schedules, the District will advise Parents of this need and provide Parents with specific guidance as to the nature of the assistance needed, and Parents will act in good faith to provide such assistance.

6. The payment for educational services in Paragraph 2(a) shall not be construed as an admission by the District that such services are necessary or appropriate for the provision of FAPE to Student and shall not be construed as a private placement by the District.
7. Parents specifically waive any right to interest or late fees on the amount of settlement for any delay in payment from the date of settlement until the date payment is due in accordance with the terms of this Agreement, and specifically release and discharge the Board and Peters Kalail & Markakis Co., L.P.A., including all of their predecessors, successors, assigns, officers, members, employees and agents, and each of them, in both their individual and official capacities, from any claim or demand for interest on the settlement amount to which Parents may or may not otherwise be entitled in accordance with *Hartmann v. Duffey*, 95 Ohio St.3d 456 (2002).
8. The Parties agree that not later than April 21, 2020, the District will convene an IEP team meeting to determine [REDACTED] LRE and offer an IEP for Student for the 2020-2021 school year. Parents may invite Lerner staff to participate in the IEP meeting. If Parents disagree with the IEP or educational placement proposed by the District for the 2020-2021 school year and file a due process complaint regarding [REDACTED] "then-current educational placement" (i.e., initial "stay-put" or "pendency placement), [REDACTED] "stay-put" or "pendency placement" shall be the placement identified in the 2019-2020 IEP (09/30/2019) (i.e., In Section 11, the first box will be checked "child attends the school he/she would attend if not disabled" and the second box will state "Due to [REDACTED] academic, communication, social, and functional needs, his instruction in language arts, mathematics, social studies and science will be provided in the resource room for students with moderate to intensive needs. [REDACTED] is able to join with his homeroom for assemblies, parties, special's classes (media center, P.E., music, art, computer lab) and special events with the assistance of a special education aide. [REDACTED] may receive his therapy services outside the classroom for initial task mastery."). The "stay-put" or "pendency" placement during any subsequent dispute may be changed as authorized by the IDEA and its implementing regulations (i.e., through a decision of the State Level Review Officer or through a mutual agreement between the District and Parents).

*Student Education Record
Not a Public Record*

9. In consideration of the promises and commitments of the Board, as set forth in this Agreement, Parents, on their own behalf and on behalf of [REDACTED], agree that all of the issues that could have been raised in a request for an impartial due process hearing are resolved by this Agreement. Additionally, Parents, on their own behalf and on behalf of [REDACTED] forever release and discharge the Board, including the individual Board members, employees, and agents in their official capacities, (collectively referred to as "the Board and its Agents"), from any and all claims, demands, actions, causes of actions or suits at law or in equity of whatsoever kind and nature (including administrative complaints with the Ohio Department of Education and the United States Department of Education Office for Civil Rights, including claims of discrimination or retaliation under Section 504), which Parents or Student may have had, now have, or may now or hereafter assert against the Board and its Agents for the entire period prior to and up to the date of the signing of this Agreement, with respect to [REDACTED] and his education in the District (i.e., the District's offer and/or provision of a free appropriate public education to [REDACTED] and Parents' participation in [REDACTED] educational programming, and through the conclusion of the 2019-2020 school year, including the summer of 2020 (provided [REDACTED] remains enrolled at Lerner for the entire 2019-2020 school year, including the summer 2020). This comprehensive waiver of claims includes, but is not limited to, claims related to education, special education, related services, transportation, tuition, room and board, reimbursement, compensatory education, damages (including related to claims of discrimination or retaliation), therapy, independent evaluations, and attorney fees. If [REDACTED] returns to the District prior to August 21, 2020, this Agreement will run through the date he returns to school in the District. This discharge of any liability includes, but is not limited to, a release of all claims arising under Section 1983 of the Civil Rights Act (42 U.S.C. § 1983), 20 U.S.C. §§ 1400 *et seq.* (i.e., the Individuals with Disabilities Education Improvement Act), Section 504 of the Rehabilitation Act (29 U.S.C. § 794), the Americans with Disabilities Act (42 U.S.C. § 12101), Ohio Revised Code Chapter 3323, other civil rights laws, regulations that implement the above-referenced statutes, and the U.S. Constitution and Ohio Constitution. Notwithstanding the preceding, Parents retain all their rights under applicable laws and regulations to enforce this Agreement, challenge or disagree with the IEP to be proposed by April 21, 2020, for the 2020-2021 school year, and/or to challenge the ETR referenced in Paragraph 16 and/or request an independent educational evaluation related to said ETR.
10. Parents (individually and on behalf of [REDACTED]), [REDACTED], and the District agree to keep the existence of this Agreement and the terms and the contents of this Agreement confidential and will not release it or discuss it, in writing or orally, with third parties. Specifically, Parents and [REDACTED] agree not to share this Agreement or the terms of this Agreement with anyone other than the following: (a) Parents' lawyers, tax advisors, and accountants; (b) immediate family members; and (c) courts, impartial hearing officers, and mediators as necessary. The individuals and organizations referenced in (a) and (b) shall be directed by Parents to keep this document and its terms confidential, and they shall be informed by Parents that this document constitutes a student education record that is protected under FERPA and Ohio Revised Code Section 3319.321. The Parties agree that the terms of Paragraph 2(a) (for the limited and express purpose of securing from Lerner

*Student Education Record
Not a Public Record*

invoices and billing records for [REDACTED] educational services), Paragraph 5 (for the purpose of securing cooperation and collaboration in providing progress reports and observations), and Paragraph 16 (for the purpose of facilitating completion of the 2020 ETR – e.g., securing evaluation data and/or performing testing and/or an observation) may be shared with Lerner. If asked about any dispute with the Brecksville-Broadview Heights City School District, the Parties shall respond only that it has been resolved. If a Court of competent jurisdiction determines Parents and/or [REDACTED] violated this Paragraph, the Court may determine appropriate relief, which may include termination of the District's obligation to make payments in accordance with this agreement.

11. The District's obligation to provide payments pursuant to Paragraph 2(a) shall automatically terminate if Student is no longer regularly attending Lerner, or if Parents or Student no longer reside in the District. In such case, the obligation to provide payments shall terminate on the date Student is no longer attending Lerner, or on the date Parents or Student no longer reside in the School District. Such termination shall have no effect upon the obligation of the District to pay tuition incurred prior to the date Student is no longer attending Lerner, or Parents or Student no longer reside in the School District. If Student stops attending Lerner for any reason, Parents must notify the District within five (5) school days, and the District will proceed to implement the 2019-2020 IEP (dated 09/30/2019), until a new IEP can be developed, which will occur within ten (10) school days of [REDACTED] returning to school in the District. See Paragraph 12.
12. Nothing herein shall prevent [REDACTED] from returning to and attending the District's schools for implementation of a new IEP, which will be developed within ten (10) school days of [REDACTED] returning to school in the District. In the interim while the new IEP is being developed, the District will implement the 2019-2020 IEP (dated 09/30/2019). Parents waive their right to challenge the appropriateness of the 2019-2020 IEP during the ten (10) school days while a new IEP is developed. Parents retain the right to challenge the appropriateness of the new IEP, after it is developed and offered by the District.
13. If [REDACTED] and/or his legal representative(s), as designated by a Court or Parents, ever initiate any legal proceedings seeking to invalidate or set aside all of or any portions of this Agreement, Parents shall hold the District harmless and indemnify the District for any liability, judgment, legal fees, or other costs and expenses arising from such legal proceedings. To the extent permitted by law, any challenge to this Agreement must be brought in Federal District Court.
14. District and Parents agree that the provisions of this Agreement can only be modified in a writing signed by both Parties.
15. The Parties, including [REDACTED], acknowledge that they have read this Settlement Agreement, Release and Waiver, and fully understand its provisions. The Parties further acknowledge that they have had an opportunity to consult with legal counsel of their choosing to consider its terms before signing this Agreement. The Parties further declare and acknowledge that no promises or agreements not expressly included in this Agreement

*Student Education Record
Not a Public Record*

have been made and that this Settlement Agreement, Release and Waiver contains the entire agreement between the Parties. The Parties affirm they are signing this Agreement of their own free and voluntary will.

16. Student's next triennial multifactored evaluation / evaluation team report ("ETR") is due by April 4, 2020. The Parties agree to meet by January 15, 2020, to plan the 2020 ETR. The 2020 ETR will be completed in a timely manner and the team will convene to discuss the ETR results. The Parties will work in a collaborative manner to schedule and conduct the assessments associated with the 2020 ETR. Parents expressly waive their right to have the team meet to discuss the IEP after the 2020 ETR is completed, and instead agree to convene the IEP by April 21, 2020, at which time the team will consider the 2020 ETR as it develops a new IEP for the 2020-2021 school year (see Paragraph 8 above).
17. This Agreement does not constitute, nor shall it be construed as, an admission of liability or wrongdoing by the Board, its agents, employees or successors, with respect to any claims Parents could potentially raise with respect to [REDACTED] entitlement to a FAPE. The District is not admitting any IEPs or placements that it offered were inappropriate; Parents are not admitting that the same are appropriate. The Board expressly denies that it has done anything wrong or unlawful.
18. This Agreement is not precedent setting. The Parties expressly agree that this Agreement shall have no bearing on [REDACTED]'s current and future educational programming and educational placement, except as expressly stated herein. As such, Parents agree that they are prohibited from introducing this Agreement in any future due process proceeding for the purpose of establishing [REDACTED] need for services outside the District.
19. This Agreement is comprehensive with respect to the sums to be paid to the benefit of Parents, and Parents and their attorney agree that they shall make no application to a court for, or in any other manner seek fees and/or costs related to development and/or review of this Agreement. The Parties shall bear their own costs in connection with this matter.
20. This Agreement is subject to approval by the Board of Education, which will act on it no later than September 25, 2019.

Date: _____

By: _____

For himself and on behalf of [REDACTED]

Date: _____

By: _____

For herself and on behalf of [REDACTED]

Student Education Record
Not a Public Record

Date: _____

By: _____
Joelle Magyar, Superintendent
On behalf of Brecksville-Broadview Heights
City School District Board of Education

Date: _____

By: _____
Gina Symsek, Director of Pupil Services
On behalf of Brecksville-Broadview Heights
City School District Board of Education

As to Paragraphs 10 & 15 Only:

Date: _____

By: _____
